



CHAPTER cclxi.

An Act to empower the Wallasey Urban District Council A.D. 1901.
to construct a railway to their gasworks and to make
further provision in regard to the health local govern-
ment and improvement of the district and the borrowing
of money and for other purposes. [17th August 1901.]

WHEREAS the urban district of Wallasey in the county of
Chester is under the government of the Wallasey Urban
District Council (in this Act called "the Council"):

And whereas in addition to their powers under the general Acts
applicable to the district extensive powers in regard to the govern-
ment and improvement thereof are conferred upon the Council by
the local Acts and Orders confirmed by Parliament specified in the
First Schedule to this Act:

And whereas in pursuance of the Wallasey Improvement Act 1858
and of the Acts of Parliament and Orders confirmed by Parliament
amending and extending the same the Council have constructed
gasworks and are supplying gas within their district:

And whereas further facilities are required for the conveyance
of coal and other materials to the gasworks of the Council and of
coke residuals and other materials therefrom and in order that such
facilities may be given and the convenience of the public promoted
it is expedient to empower the Council to make and maintain the
railway described or referred to in this Act:

And whereas it is expedient to extend the borrowing powers of
the Council for the purposes of their gas undertaking:

And whereas it is expedient to make further provision with
reference to the streets and buildings in the district and to the
health local government and improvement thereof:

And whereas it is expedient to empower the Council to establish
a superannuation fund to equate the periods for the repayment of

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And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows:—

For and in connection with the purchase of land for	£
and the construction of the railway authorised by	
this Act - - - - -	4,500

For the extension of the gasworks of the Council the	
provision of additional works the laying of mains	
and for other the purposes of the gas undertaking	
of the Council - - - - -	45,500

And whereas the several works included in such estimates respectively are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the Council at a meeting held on the seventeenth day of December one thousand nine hundred after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Liverpool Daily Post a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the fourth day of March one thousand nine hundred and one being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines and levels of the works by this Act authorised and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly

deposited with the clerk of the peace for the county of Chester and are in this Act respectively referred to as the deposited plans sections and book of reference: A.D. 1901.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Wallasey Improvement Act Short title. 1901.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Railway to Gasworks.
- Part III.—Streets and Buildings.
- Part IV.—Infectious Disease.
- Part V.—Milk Supply (Tuberculosis).
- Part VI.—Street Advertisements.
- Part VII.—Superannuation.
- Part VIII.—Finance.
- Part IX.—Miscellaneous.

Division
of Act into
Parts.

3. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (namely):— Incorporation of Acts.

- (1) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the construction of the railway and the works connected therewith:
- (2) Sections 9 to 12 of the Railways Clauses Act 1863:
- (3) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

“ The Council ” means the Wallasey Urban District Council;

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- “The district” means the urban district of Wallasey ;
- “The clerk” “the surveyor” and “the inspector of nuisances” mean respectively the clerk the surveyor and the inspector of nuisances of the district ;
- “The medical officer” means the medical officer of health for the district and includes any person duly authorised to act temporarily as medical officer of health ;
- “The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district ;
- “The board” means the Mersey Docks and Harbour Board ;
- “Dairy” includes any farm farmhouse cow-shed milk-store milkshop or other place from which milk is supplied or in which milk is kept for purposes of sale ;
- “Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy ;
- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district ;
- “Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction ;
- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;
- “Statutory security” means any security in which trustees are for the time being by or under Act of Parliament passed or to be passed authorised to invest trust money (except any security of the Council) and any mortgage bond stock debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act

1875 except as before excepted and except annuities rent-charges and securities payable to bearer ; A.D. 1901.

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by or on the precept of the Council ;

“The recited Acts” means the Acts referred to in the First Schedule to this Act ;

“The Act of 1890” means the Wallasey Local Board Act 1890 ;

“The Act of 1896” means the Wallasey Urban District Council (Promenade) Act 1896.

PART II.

RAILWAY TO GASWORKS.

5. Subject to the provisions of this Act the Council may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway hereinafter described with all proper junctions sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for that purpose Provided always that the Council shall not enter upon take or use any land belonging to the board or in any way interfere with their estate without the consent of and upon terms approved by the board in writing under the hand of their secretary. Power to make railway.

The railway hereinbefore referred to and authorised by this Act is—

A railway (1 furlong 3·25 chains in length) to be situate in the district commencing by a junction with the railway of the board in Dock Road at a point $51\frac{1}{3}$ yards measured in an easterly direction from the intersection of the centre line of that road with the centre line of the occupation road known as Gorsey Lane proceeding thence along the said Gorsey Lane and terminating at the gasworks of the Council by a junction with their existing line at the termination thereof at or near to the southern entrance to the gasworks from Gorsey Lane :

Provided that subject to the construction maintenance and user of the said railway nothing contained in this section shall deprive or shall authorise the Council to deprive any person of the right of way (if any) along Gorsey Lane Provided further that the junction

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proposed to be made between the railway by this Act authorised at its commencement and the railway of the board in Dock Road shall not be made except with the consent of and upon terms approved by the board in writing under the hand of their secretary.

As to construction of railway in Gorsey Lane.

6. Except so far as may be otherwise agreed between the Council and the executors of Harry Gordon Smith deceased or other the owner or owners for the time being of the lands now belonging or reputed to belong to the said executors and lying east of Gorsey Lane and south of the Wirral Railway (in this section referred to as "the owners") the following provisions shall apply and have effect:—

- (1) The Council shall not under the powers of this Act enter upon or take any part of the land of the owners but the Council shall be entitled without payment to the easement or right of or connected with constructing using repairing renewing and maintaining the said railway so far as the same will be constructed upon the lands of the owners:
- (2) In constructing the said railway along Gorsey Lane the same shall be so laid that no rail shall be within twenty-two feet of any portion of the land abutting upon such lane now belonging to the owners except so far as may be reasonable or necessary for the purpose of making the curve of the said railway into Dock Road for which purpose the said railway shall be so laid that no rail shall be within twenty feet of the said land:
- (3) When constructing the said railway the Council shall level so much of the part of Gorsey Lane along which the railway shall be constructed as lies between the centre of the lane and the eastern boundary thereof so as to accord with the level of the rails subject to the usual curve or fall from the centre of the lane to the side thereof:
- (4) So long as the said railway shall remain in Gorsey Lane the Council shall maintain and repair the rails thereof and the substructure on which they rest and so much of the road as lies between such rails or as extends for a distance of two feet on either side thereof and if abandoned the Council shall if required by the owners remove the said railway and restore the surface of the lane to the reasonable satisfaction of the owners:
- (5) If the Council shall construct the said railway they shall at the request of the owners grant to them running powers over the said railway for the purpose of gaining access to and from

their said lands and for that purpose the Council shall at the request and cost of the owners make such junction or junctions with the said railway at such points as may be agreed between the Council and the owners or in default of agreement as may be determined by arbitration and such owners for the purpose of carrying or conveying materials articles and things to and from their lands shall have and may exercise the powers conferred upon the Council by the section of this Act of which the marginal note is "Engines wagons and use of railway" Provided that —

- (A) The exercise of such running powers over the connection between such railway and the railway of the board shall be subject to the terms and conditions so far as they are applicable imposed or to be imposed by the board in consenting to the making or retaining of the junction proposed to be made between the said railway at its commencement and the railway of the board in Dock Road ;
- (B) The Council shall at all times have priority of traffic over the railway authorised by this Act and shall be entitled to control the traffic thereon and to make reasonable regulations in regard to such traffic and all such regulations shall be observed by the owners and if any question shall arise between the Council and the owners in regard to such traffic or in regard to such regulations the same shall be determined by arbitration ;
- (C) As soon and so long as the owners exercise running powers over the said railway they shall pay to the Council one half of the sum of twenty-five pounds payable by the Council to the board in respect of the junction between the railway authorised by this Act and the railway in Dock Road and if such sum be at any time increased the owners shall pay to the Council such proportion of the amount by which it is increased as may be agreed between the Council and the owners or as in default of agreement may be determined by arbitration and the owners shall also pay to the Council such proportion of the cost of maintaining and repairing the rails of the said railway and the substructure on which they rest as may be agreed between the Council and the owners or as in default of agreement may be determined by arbitration ;

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(D) Such running powers shall not be exercised for the purpose of conveying traffic to or from the railway of any railway company from or to the railways of the board in Dock Road :

(6) If at any time after the construction of the said railway in Gorsey Lane any private street works as defined in the Act of 1890 are executed in that lane in pursuance of that Act or of the Public Health Acts or of any amendment or re-enactment thereof respectively the Council shall contribute one half of the amount which under such Act would be payable by the owners in respect of the execution of such private street works in such part of the said lane as will lie between the railway authorised by this Act as constructed and the lands now belonging or reputed to belong to the owners and now lying east of Gorsey Lane :

(7) The owners shall not at any time hereafter enclose or build upon any land forming part of Gorsey Lane and situate within the limits of deviation of the said railway as shown on the deposited plans :

(8) Nothing in this Act shall constitute Gorsey Lane a street or road within the meaning of the Public Health Acts or any Act relating to the Council or the district so as to make frontagers on the said lane liable for the cost of private street works as above referred to :

(9) Any question dispute or difference which may arise between the owners and the Council under this section shall unless otherwise agreed be determined by arbitration the arbitrator being a person agreed on by the parties or in default of agreement appointed by the President of the Institution of Civil Engineers on the application of either of the parties.

Breaking up
of roads.

7.—(1) For the purpose of making or maintaining the railway authorised by this Act the Council may open and break up any public road in which it is authorised to be constructed Provided that where they open or break up any such road they shall be subject to the following obligations :—

(A) They shall with all convenient speed complete the work on account of which they open or break up the road and subject to the making and maintenance of the railway fill in the ground and make good the surface and restore the portion of the road to as good condition as that in which it was before it was opened or broken up and clear away all surplus paving or metalling material or rubbish occasioned thereby :

(B) They shall in the meantime cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night. A.D. 1901.

(2) The Council shall so make and maintain the railway authorised by this Act in any public road that the rails thereof shall be on a level with the surface of the road.

8. If the railway is not completed within three years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Council for making and completing the railway or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

9. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

10. It shall be lawful for the Council to provide use and employ locomotive engines and other motive power and carriages wagons trucks and other necessary rolling stock and to carry and convey upon the railway coals coke residual products and other things required for or produced at their gasworks and any other materials articles and things which the Council may require to carry or convey upon the railway to or from the lands upon which or upon part of which the gasworks are erected : Engines wagons and use of railway.

Provided that if electrical power be employed upon the railway it shall be so used as to prevent any interference with telegraphic communication by means of any telegraphs belonging to or maintained or used by the Postmaster-General.

11. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :— Provisions as to use of electrical power.

(1) The Council shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Council shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

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- (3) The electrical power shall be used only in accordance with regulations to be prescribed by the Board of Trade (in this Act referred to as the Board of Trade regulations) and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Council shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Council either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wires lines or apparatus or the currents therein unless in the construction erection maintaining and working of such wires lines and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Council and any other party with respect to anything in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The Council using electrical power contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such

offence continues after conviction thereof. Provided always that whether any such penalty has been recovered or not the Board of Trade if in their opinion the Company in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the Board of Trade regulations may by order direct the Council to cease to use electrical power and thereupon the Council shall cease to use electrical power and shall not again use the same unless with the authority of the Board of Trade and in every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

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12. The railway and works authorised by this Act shall form part of the gas undertaking of the Council.

Railway to form part of gas undertaking.

PART III.

STREETS AND BUILDINGS.

13.—(1) The Council may (if in the circumstances of the case they think it expedient so to do) make it a condition of approving the plans of any new street that such street if more than seventy-five yards in length shall be so laid out and formed that the same shall not terminate with a dead end or cul-de-sac but shall have an entrance at each end of a width equal to the width of such street and in any such case the street shall not be laid out and formed except in accordance with such condition.

Provision for preventing formation of cul-de-sac.

(2) Any person deeming himself aggrieved by a condition imposed by the Council under this section may within one month after receipt of notice of such condition appeal to a court of summary jurisdiction who may make such order in the matter as they may deem equitable.

(3) Any person who shall offend against this enactment shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

14. Where any tree hedge or shrub overhangs any street so as to obstruct or interfere with any telephone telegraph or tramway electric wire or the light from any public lamp or to interfere with the free passage of passengers the Council may serve a notice on the occupier of the premises on which such tree hedge or shrub is growing requiring him within a reasonable time to be specified in such notice to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

Trees or shrubs overhanging streets.

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Council may
require
enlarged
sewer.

15. If in any new street or in any street in regard to which the Council put in force the provisions of Part IV. (Private street works) of the Act of 1890 the Council for the purpose of main drainage or otherwise shall require a larger or more costly sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such new street or the Council (as the case may be) shall construct such larger or more costly sewer in accordance with the requirement of the Council and the additional cost thereof shall be paid and borne by the Council.

Provisions as
to separate
system of
sewerage.

16.—(1) From and after the passing of this Act the Council may from time to time by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this Act called a "sewage sewer") and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this Act called a "surface water sewer").

(2) Where under the provisions of the Public Health Acts or the recited Acts the Council have the power to require any street to be sewered they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly. Provided that the powers of this subsection shall not be exercised in regard to any street not repairable by the inhabitants at large except in cases where the sewage conveyed or to be conveyed by the sewage sewers is or is proposed to be raised by pumping or other artificial means.

(3) Where in any street separate sewage sewers and surface water sewers shall have been provided no sewage shall be allowed to pass from any premises into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Council. Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Council have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof.

17.—(1) From and after the passing of this Act—

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- (A) The erection of any building;
- (B) The re-erection wholly or partially on the same site of any building of which the outer wall is pulled down or burnt down to or within ten feet of the surface of the adjoining ground and of any frame building so far pulled or burned down as to leave only the framework of the ground floor storey thereof;
- (C) The conversion into a dwelling-house or shop of any building or part of a building not originally constructed for human habitation;
- (D) The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws;
- (E) The reconversion into a dwelling-house of any building other than a shop which has been discontinued as or appropriated for any purpose other than a dwelling-house;
- (F) The making of any addition to any existing building by raising any part thereof or making any projection therefrom but so far as regards such addition only; and
- (G) The roofing or covering over of any open space between walls or buildings;

What to be deemed new buildings.

shall for all the purposes of this Act of the recited Acts and of the Public Health Acts and of any byelaws made thereunder respectively be deemed to be the erection of a “new building.”

(2) Section 17 of the Act of 1890 is hereby repealed.

18. The Council may make byelaws with respect to the strength of the timber employed in the construction of new buildings and the manner in which grates stoves and fireplaces shall be set in new buildings.

Byelaws as to building materials.

19. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer and the surveyor shall cause the ground to be closed and any damage done to be made good as soon as can be and the expense of laying open the drain and of closing

Old drains to be laid open and examined before communicating with sewers.

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Council may
order house
so be drained
by a com-
bined drain.

20.—(1) If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct. Provided that the owners shall not be required to carry such combined drain through the land of an owner whose drains do not form part of or join the combined drain.

(2) The costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Council shall determine and if paid by the Council may be recovered by the Council from such owners or occupiers.

(3) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts and of the recited Acts be deemed to be a drain and not a sewer.

(4) This section shall not apply to any house the plans for the construction of which have been approved by the Council before the passing of this Act.

Power to
require
waterclosets
for new
buildings.

21.—(1) The Council may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by notice to the person by whom plans relating to the new building are deposited require that such building shall be provided with one or more proper and sufficient waterclosets according as the circumstances may require.

(2) Any person offending against any requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
require
waterclosets
in existing
buildings.

22.—(1) If on the report of the medical officer the surveyor or the inspector of nuisances the Council are satisfied that any building has not sufficient closet accommodation provided thereat or in connection therewith the Council may when a sewer and water supply sufficient for the purpose are reasonably available by notice to the owner require that such building shall be provided with one or more proper and sufficient waterclosets according as the circumstances may require.

(2) When a sewer and water supply sufficient for the purpose are reasonably available the Council may by notice to the owner of any building require any existing closet accommodation (other than a watercloset) provided at or in connection with such building to be altered so as to be converted into a watercloset which shall communicate with a sewer and they may also require a separate réceptacle for ashes and house refuse to be provided at or in connection with such building. A.D. 1901.

(3)—(A) If the owner of any building fail in any respect to comply with a notice from the Council under this section the Council may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the work specified in such notice and may recover from the owner the expenses incurred by the Council in so doing :

(B) Provided that if in any case of conversion as aforesaid the alterations shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer to be insufficient for the necessities of the inhabitants of the building or to be in such a state as to be a nuisance or injurious to health then one half of the expenses so incurred by the Council as aforesaid shall be borne by them.

(4) Where any person deems himself aggrieved by any requirement of the Council under this section or under the last preceding section of this Act or disputes the reasonableness of any expense recoverable from him by the Council under this section such person may within fourteen days after service of the notice of the requirement or of a demand for payment of such expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and in accordance with the provisions of this section and the order so made shall be binding and conclusive on all parties Provided that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(5) Pending the decision of the court upon any appeal under this section the Council shall not execute any works included in the notice and any proceedings which may have been commenced for the recovery of their expenses shall be stayed.

(6) Any notice served under this section shall state the provisions of this section.

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Apportion-
ment of
expenses
in case of
joint owners.

23. Where under the provisions of this Part of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

As to
nuisances.

24. For the purposes of the Public Health Acts—

- (1) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;
- (2) Any gutter drain shoot stack-pipe or down-spout of a building which by reason of its insufficiency or its defective condition shall cause damp in an adjoining building ;
- (3) Any deposit of material in or on any building or land which shall cause damp in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be a nuisance within the meaning of the said Acts.

Exemption
of Govern-
ment pro-
perty from
building
regulations.

25. Without prejudice to any existing right of His Majesty there shall be exempted from so much of the provisions of this Act as relates to buildings and structures every building structure or work vested in or in the occupation of His Majesty either beneficially or as part of the hereditary revenues of the Crown or in trust for the public service or for public services also any building structure or work vested in or in the occupation of any department of His Majesty's Government for public purposes or for the public service.

Saving for
Mersey
Docks and
Harbour
Board.

26. Nothing contained in this Part of this Act or in any other Act giving the Council powers as to streets and buildings or in any byelaws made thereunder shall be deemed to extend or apply to any part of the estate for the time being of the board within the district or to any works or buildings (except dwelling-houses) now or hereafter to be executed constructed or carried out on the said estate and used or intended to be used for or in connection with the business or purposes of the board under any power vested in them or prejudice or affect any of the rights powers or privileges of the board.

PART IV.

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INFECTIOUS DISEASE.

27.—(1) A person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall not after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that there is no risk that such child will communicate such disease to others.

Child suffering from infectious disease not to attend school.

(2) Any person offending against this enactment shall be liable to a penalty not exceeding forty shillings.

28.—(1) The managers trustees or superintendents of any Sunday school shall comply with any notice of the Council or any two members thereof acting on the advice of the medical officer requiring them within a specified time either to close the said school or to exclude any scholars from attendance thereat for such period as shall be specified in such notice in order to prevent the spread of infectious disease.

Closing of Sunday schools for preventing spread of disease.

(2) Any person offending against this enactment shall be liable to a penalty not exceeding forty shillings.

29.—(1) No person shall return to any lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice thereof and leave the book at the office of the inspector of nuisances whose duty it shall be to cause the same to be disinfected and then returned to the librarian.

Protection against infection of books from lending library.

(2) Any person offending against this enactment shall be liable to a penalty not exceeding forty shillings.

30. The Council may make byelaws for regulating the admission to and discharge of patients from any hospital for infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Council.

Byelaws regulating hospitals.

31. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Council may pay expenses of person in hospital.

A.D. 1901.

For regu-
lating manu-
facture and
sale of ice-
cream &c.

32.—(1) Any person being a manufacturer of or merchant or dealer in ice-cream or other similar commodity who within the district—

(A) Causes or permits ice-cream or other similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building any part of which is used for the manufacture of ice-cream or similar commodity suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

Public notice
to be given
of provisions
of this Part
of Act

33. Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the public offices in the district and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART V.

MILK SUPPLY (TUBERCULOSIS).

Penalty for
selling milk
of diseased
cows.

34. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty on
failing to
isolate
diseased
cows.

35. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering

from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds. A.D. 1901.

36.—(1) Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is. Obligation to notify cases of tuberculosis.

(2) Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

37.—(1) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district. Power to take samples of milk.

(2) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

38.—(1) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished. Power to inspect cows and to take samples of milk.

(2) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring

A.D. 1901. — him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council.

(3) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(4) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(5) If in their opinion the dairyman fails to show cause why such an order may not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of the administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(6) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(7) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(8) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

(9)—(A) The dairyman may appeal against an order of the Council under this section or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture who shall appoint an officer

to hear such appeal Such officer shall fix a time and place for hearing within the district and give notice thereof to the dairyman and the clerk not less than forty-eight hours before the hearing Such officer shall for the purposes of the appeal have all the powers of a petty sessional court. A.D. 1901.

(B) The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

(c) The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

(10)—(A) If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order.

(B) The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

(c) Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

39. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the

Notice of provisions of this Part of Act.

A.D. 1901. first publication of such an advertisement as aforesaid as the Council may fix.

Procedure.

40. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Council before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

As to expenses.

41. All expenses incurred by the Council in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

Execution of this Part of Act by committee.

42. The provisions of this Part of this Act may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

PART VI.

STREET ADVERTISEMENTS.

Restriction of advertising vehicles and hoardings.

43.—(1) It shall not be lawful in any street to use any vehicle exclusively or principally for the purpose of displaying advertisements or for two or more persons together to carry a board or boards for such purpose without the consent of the Council which consent may be for such time and contain such terms and conditions as the Council think fit.

(2) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(3) It shall not be lawful to erect any hoarding or similar structure to be used wholly or partly for advertising purposes in abutting on or adjoining any street to a greater height than fifteen feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions of such hoarding as the Council may determine.

(4) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain

the same in proper and safe repair and condition and in the event of any papers affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such papers. A.D. 1901.

(5) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(6) Any person deeming himself aggrieved by the refusal of the Council to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction within fourteen days after such refusal or after the giving of such consent (as the case may be) provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as they see fit and to award costs.

(7) Section 79 of the Act of 1890 is hereby repealed.

44.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed Provided that in any of the following cases a licence of the Council under this section shall become void (namely) :— Regulations
as to sky
signs.

- (A) If any additions to any sky sign be made except for the purpose of making it secure under the direction of the surveyor;
- (B) If any change be made in the sky sign or any part thereof;
- (C) If the sky sign or any part thereof fall either through accident or decay or any other cause;
- (D) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof;
- (E) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed:

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Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequences as to the recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section—

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support. The expression “sky sign” shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(A) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement;

(B) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof. Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported;

(C) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a

railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place. A.D. 1901.

45. This Part of this Act shall not apply to or in the case of the board or to or within any part of their estate. This Part of Act not to apply to Mersey Dock estate.

PART VII.

SUPERANNUATION.

46. The Council may establish in manner hereinafter provided a fund for the provision of payments or other allowances on death superannuation resignation retirement or discharge of persons in the service of the Council who have contributed to such fund The Council may prepare and approve by resolution a scheme or schemes for the establishment of such fund and may determine in and by any such scheme the following matters and things or any of them (that is to say) :— Superannuation fund.

(1) What classes of persons shall be entitled to contribute to and to participate in the benefit of the fund and to what extent such contribution shall be payable by persons entering or who shall have entered the service of the Council after the passing of this Act and also upon what terms and conditions persons in the service of the Council at the passing of this Act shall on their own application be admitted to the benefit of the fund :

(2) The division of the persons contributing to and to be benefited by the fund into two or more classes according to the amount of salary or wages or according to such other conditions as the Council shall determine power being reserved by the scheme to remove any contributor from the one class to the other Provided that no such removal shall place the contributor or his representatives in a worse position than he would have occupied if the removal had not been made :

(3) What (if anything) shall disqualify any person in the employ of the Council from becoming a contributor to the fund and participating in the benefits thereof :

(4) Under what circumstances any person having been a contributor to the fund shall cease to continue a contributor and to be entitled to participate in the benefits thereof :

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- (5) What proportion (if any) of his own contributions to the fund and of the interest which shall have accrued thereon under the scheme any person having been but ceasing to be a contributor thereto shall be entitled to receive :
- (6) What proportion (if any) of the additions made by the Council to the fund in respect of the contributions of any member shall be payable to the representatives of such member in the event of his dying before he becomes entitled to any benefit under the scheme on superannuation resignation or retirement :
- (7) The percentage or proportion not exceeding without the consent of the Secretary of State three per centum of their salaries or wages which shall be payable to the fund by the contributors Provided that in the case of persons who are in the service of the Council before the fund is established the percentage or proportion may exceed the said amount but shall not without the consent of the Secretary of State exceed five per centum :
- (8) The age at which or other circumstances in which a person shall become entitled to benefit under any scheme so that no contributor retiring of his own accord and not incapacitated by illness shall be entitled to benefit (except by way of return of his own contributions with interest under the next succeeding section of this Act) at a less age than sixty :
- (9) The payment to a person entitled to benefit under any scheme either by way of a gross sum or by way of an annuity instead of such gross sum calculated at such rate of interest as may be defined by the scheme :
- (10) The rate not exceeding three pounds per centum at which interest whether simple or compound shall be calculated in respect of the moneys contributed to the fund by the contributors and by the Council respectively :
- (11) The future management and direction of the fund and the number of and mode of appointment of the committee for administering and managing the same and the powers to be conferred upon the committee with respect to such administration and management and whether any and if so what persons other than members of the Council should form part of or be associated with the said committee for the purposes of the administration and management of the fund or form a separate consultative committee to be elected by the contributors to the fund and define the functions and mode of election of such consultative committee :

(12) The securities upon which the moneys received on account of the fund shall from time to time be invested Provided that such investment shall not be made in any mortgage bond debenture debenture stock corporation stock annuity rent-charge rent or other security of the Council or in securities transferable by delivery : A.D. 1901.

(13) And generally all such other matters and things in relation to the fund as the Council shall deem fit and proper to form part of and to be included in such scheme.

47.—(1) Any scheme under this Part of this Act shall contain the following provisions :— Further provisions as to scheme.

(A) Any contributing member retiring bonâ fide from the service of the Council of his own accord before attaining the age prescribed by the scheme and not to escape dismissal for fraud dishonesty or misconduct shall be entitled to receive back the whole amount of his contributions with such interest as shall have accrued thereon under the scheme and shall have no further claim upon the fund :

(B) The representatives of any contributing member who (not having been guilty of fraud dishonesty or misconduct) shall die before he becomes entitled to any benefit under the scheme on superannuation resignation or retirement or having become so entitled before he shall have received back a sum equal to his whole contributions and the interest accrued thereon shall be entitled to receive back the whole of the contributions of such member or (as the case may require) such part thereof as he shall not have so received back with such interest as shall have accrued thereon under the scheme and shall have no further claim upon the fund except as may be provided by the scheme :

(C) Any contributing member dismissed from the service of the Council for fraud or dishonesty or for misconduct or retiring to escape dismissal for any of those causes shall at the discretion of the Council forfeit all or any part of his contributions and the interest thereon and lose all benefits from the fund except such return (if any) as may at such discretion be made to him out of his own contributions and the interest thereon :

(D) Any contributing member who shall become entitled to superannuation or shall be required to retire in consequence of any reduction of the number of persons in the service of the Council or of his services being discontinued from any cause other than fraud dishonesty or misconduct shall be entitled to payment as follows If by way of gross sum the

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total amount of contributions made by him to the fund and of the corresponding contributions made by the Council with interest thereon and if by way of an annuity such an amount as shall be determined by actuarial calculation to be of equal value to such gross sum as aforesaid.

(2) Provided that the scheme may instead of and by way of alternative to the provision for payment to contributing members contained in the last paragraph of subsection (1) of this section contain a provision to the effect that any contributing member who shall become entitled to superannuation or shall be required to retire for any of the reasons contained in that paragraph shall be entitled to the payment of an annuity of such an amount as shall be equal to not less than one sixtieth of the annual salary or wages of such member calculated upon the average amount of such salary or wages during the three years immediately preceding his retirement multiplied by the number of years for which he shall have been in the service of the Council. Provided however that such annuity shall not exceed two thirds of his said salary or wages and the provisions of the section of this Act whereof the marginal note is "Scheme to be submitted to actuary" shall not apply to any scheme containing a provision in pursuance of this subsection.

Copies of
scheme to be
supplied.

48. The Council shall supply a copy of any scheme in force under this Part of this Act at a price not exceeding sixpence to any person in the employ of the Council interested in the fund or to the representatives of any such person in case of death and shall supply gratuitously to every officer or servant or other person having an interest in the fund a copy of the last annual balance sheet of the same for the time being.

Council to
contribute
to fund.

49.—(1) The Council shall at the end of every half year after the establishment of the fund contribute thereto out of the rate or revenue upon which the salary or wages of each contributing member is or are respectively chargeable a sum equal in amount to the sum which during the same half year has been contributed thereto by such contributing member.

(2) In the event of the moneys standing to the credit of the fund being in any year inadequate for the payment to contributing members of the sums to which they will be entitled under the provisions of the scheme the amount of any deficiency shall be made good by the Council out of the district fund.

(3) The Council may also pay out of the district fund any salaries costs and expenses of the management and administration of the fund and of and incidental to investments.

50. Subject to the provisions of subsection (2) of the section of this Act whereof the marginal note is "Further provisions as to scheme" the following provisions shall apply :—

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Scheme to
be submitted
to actuary.

(1) Prior to the scheme coming into operation it shall be submitted by the Council to an actuary being a fellow either of the Institute of Actuaries of Great Britain and Ireland or of the Faculty of Actuaries in Scotland to be appointed by the Council with the approval of a Secretary of State who shall consider such scheme and shall report thereon as to its solvency or otherwise. In the event of such actuary reporting that in his opinion the scheme as a whole is a solvent one without recourse to the guarantee of the Council the scheme may come into operation but not otherwise :

(2) Once in every five years after the commencement of the scheme it shall be submitted to an actuary to be appointed as aforesaid for revision (if necessary) and in the event of such actuary recommending any modifications alterations or amendments therein such modifications alterations or amendments shall if approved by a Secretary of State be forthwith adopted by the Council. If upon such actuary's recommendations the Council are satisfied that any addition (specified by him) may be made to all annuities payable within the following period of five years without risk that a deficiency in the funds may at any future time be thereby caused they may direct such addition to be made to all annuities for such period :

(3) There shall be paid to such actuaries such reasonable remuneration as may be agreed or as may be fixed by a Secretary of State.

51. It shall be lawful for the Council on the recommendation of the committee for administering and managing the fund but subject to the provisions of this Act to alter any portion of any scheme but no contributor or representative of a contributor shall by reason of any such alteration be placed in a worse position than he would have occupied if the alteration had not been made.

Alteration
of scheme.

52. It shall be lawful for the Council to enter into and carry into effect any contract with any company carrying on the business of life assurance or provident fund for the undertaking by such company of the liabilities of the Council under any scheme or schemes made under this Part of this Act or any of them.

Contracts
with assur-
ance society.

53. The Council shall not be bound to recognise or see to the execution of any assignment or of any trust (whether express implied or constructive) relating to any contributions of any

Council not
to regard
trusts or
assignments.

A.D. 1901. — contributing member to the fund or the interest thereon or additions thereto but the receipt of the contributing member for the same or (if he is dead) of his legal personal representatives or the person or persons to whom the same may be paid under the authority of this Act shall be a sufficient discharge to the Council in respect thereof notwithstanding any assignment thereof or any trust to which the same may be subject and whether or not the Council have had notice (express implied or constructive) of any such assignment or trust or of any charge or incumbrance upon any such contributions or the interest thereon or additions thereto or any part thereof respectively and the Council shall not be bound to see to the application of any money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application thereof.

Application
of provisions
of Friendly
Societies
Act 1896.

54. Any scheme for the establishment of a superannuation or provident fund under this Part of this Act shall not come into operation until the Council shall in respect of that fund have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Part of this Act shall apply (A) as if the Council were a society to which that Act applies and were the trustees of such society (B) as if the scheme were the rules of such society (C) as if the superannuation or provident funds were the funds of such society and (D) as if the contributors to the fund were the members of such society.

Annual
returns.

55. In every year after a scheme under this Part of this Act has been registered the Council shall not later than the thirty-first day of July send to the Registrar of Friendly Societies a return in such form as the Registrar may prescribe of the receipts and expenditure funds and effects of the Council in connection with or for the purposes of the scheme and such return shall be made out to the thirty-first day of March then last inclusively.

Power to
grant
gratuities
in certain
cases.

56.—(1) The Council may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

PART VIII.

FINANCE.

A.D. 1901.

57.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say) :—

Power to borrow.

(A) For and in connection with the purchase of land for and the construction of the railway authorised by this Act the sum of four thousand five hundred pounds ;

(B) For the extension of the gasworks of the Council the provision of additional works the laying of additional mains and for other the purposes of the gas undertaking of the Council the sum of forty-five thousand five hundred pounds ;

(c) For the payment of the costs charges and expenses of this Act as hereinafter provided such sum as may be necessary for the purpose.

(2) The Council may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act or of the gas undertaking of the Council.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may charge the district fund and general district rate or as regards money borrowed for the purposes of the railway authorised by this Act or of the gas undertaking of the Council the Wallasey Lighting Account as mentioned in the Wallasey Improvement Act 1858 and the district fund and general district rate or either of such securities.

58. The Council shall pay off all money borrowed by them under this Act within the respective periods (in this Act referred to as “ the prescribed periods ”) following (that is to say) :—

Periods for repayment of money borrowed.

As to money borrowed for the purposes (A) or (B) mentioned in the section of this Act the marginal note whereof is “ Power to borrow ” within thirty-five years from the date or dates of the borrowing of the same ;

As to money borrowed for the purpose (c) in the said section mentioned within five years from the date or dates of the borrowing of the same ;

As to money borrowed with the consent of the Local Government Board within such period as that Board may sanction.

59. The following provisions of the Act of 1896 shall apply to the exercise of the powers of this Act as if the same were re-enacted in this Act namely :—

Application of financial provisions of Act of 1896.

Section 24 (Mode of raising money) ;

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- Section 25 (Certain regulations of Public Health Act not to apply);
- Section 26 (Application of provisions of Public Health Act as to mortgages);
- Section 28 (Mode of repayment of money borrowed on mortgage);
- Section 29 (Regulations as to sinking fund);
- Section 30 (Saving for existing charges);
- Section 31 (Council not to regard trusts);
- Section 32 (Appointment of receiver);
- Section 33 (Power to reborrow);
- Section 34 (Annual return to Local Government Board);
- Section 36 (Application of money borrowed);
- Section 37 (Protection of lender from inquiry);
- Section 38 (Inquiries by Local Government Board);
- Section 39 (Expenses of execution of Act);
- Section 40 (Audit of Accounts):

Provided that the provisions contained in section 29 of the Act of 1896 shall apply to the formation of sinking funds for the repayment of money borrowed under the Local Loans Act 1875 instead of section 15 of the last-mentioned Act.

As to
uniform
period for
repayment
of moneys
already
borrowed.

60. Notwithstanding anything contained in any Act Order or sanction authorising the borrowing or raising by the Council of the several loans mentioned or referred to in the Second Schedule to this Act (in this section referred to as "the scheduled loans") an uniform period of twenty-two years from the thirty-first day of March one thousand nine hundred and one shall be substituted for the periods prescribed by the said Act Order or sanction for the repayment of the scheduled loans and in order to give effect to this enactment the following provisions shall apply (that is to say):—

- (1) All statutory provisions and all conditions imposed by any public department of state subsisting at the passing of this Act prescribing the time at which or the mode in which any of the scheduled loans shall be repaid are as regards such loans hereby repealed and annulled and all such loans shall be paid off within twenty-two years from the thirty-first day of March one thousand nine hundred and one. Provided that nothing in this subsection shall be construed to compel the holder of any mortgage or other security granted before the passing of this Act to accept payment of the principal due on his security before the time originally fixed or otherwise agreed in that behalf and the Council may continue on loan the sums of money secured by any such mortgage or other security until

the time originally fixed or otherwise agreed for the repayment thereof:

(2) The repayment of the scheduled loans shall be effected either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund:

(3)—(A) The sinking fund to be formed for the repayment of so much of the scheduled loans as the Council shall determine to repay by means of a sinking fund shall be called "the consolidated sinking fund" and shall be an accumulating sinking fund formed and maintained in manner prescribed by section 29 of the Act of 1896 and the provisions of that section so far as they apply to an accumulating sinking fund shall apply accordingly. Provided that the period of twenty-two years from the thirty-first day of March one thousand nine hundred and one shall for the purposes of that section be the prescribed period and that the sums to be paid into the consolidated sinking fund shall be such as with the sums to be transferred to that fund under paragraph (B) of this subsection and with accumulations on the amounts for the time being in the fund at a rate not exceeding three per centum per annum shall be sufficient to pay off within the prescribed period so much of the scheduled loans as the Council determine to repay by means of a sinking fund;

(B) All sinking funds formed for the repayment of the scheduled loans which existed or should have been existing on the thirty-first day of March one thousand nine hundred and one shall be made up to the proper amount and shall be transferred to the consolidated sinking fund:

(4) The sums required for the payment of interest on the scheduled loans and for the payment of instalments and for payments into the consolidated sinking fund shall be contributed out of the several revenues and rates out of which the yearly or other sums would have been payable for the purpose of discharging the scheduled loans if this section had not been enacted:

(5) If at the expiration of the aforesaid period of twenty-two years any mortgages granted before the passing of this Act the holders of which cannot be compelled to accept payment of the sums due to them within the said period are still outstanding the Council may keep invested after the expiration of the said period such portion of the consolidated sinking fund as shall be sufficient to pay off the principal moneys secured by such mortgages and the Council shall pay off the same

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at the times respectively mentioned in that behalf in the respective mortgage deeds and the interest on any such mortgages after the expiration of the said period and until the same are respectively paid off as hereinbefore provided shall be paid out of the interest and annual proceeds of the money which the Council are by this subsection empowered to keep invested as aforesaid and if at any time such interest and annual proceeds are insufficient to pay in full the interest on the said mortgages the deficiency so arising shall be made good out of the respective funds or rates which at the passing of this Act are liable in respect of such mortgages and in the order in which they are so liable.

Scheme for
fixing
uniform
period for
repayment
of future
loans.

61.—(1) The Council may at any time make a scheme for prescribing one or more uniform periods within which all or any future loans contracted by them under statutory borrowing powers (and either with or without any of the loans mentioned in the Second Schedule to this Act) shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Power to
use con-
solidated
sinking fund
instead of
borrowing.

62.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of the consolidated sinking fund and set aside for the repayment of a loan—

(A) Secured by a charge on the same rate fund or revenue as would be specifically chargeable (otherwise than under the

provisions of the next following section of this Act) as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security; and

(B) Not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(A) Withdraw from the consolidated sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(B) Credit such account or accounts in the sinking fund as the Council may determine with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing powers shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security.

(3) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

63.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Third Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with stock issued by the Council and with all other securities

A.D. 1901. — granted by the Council at any time after the date of the first creation of such stock.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Council a register of the mortgages under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Third Schedule to this Act or to the like effect.

(8) There shall be kept at the office of the Council a register of the transfers of mortgages under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds. A.D. 1901.

PART IX.

MISCELLANEOUS.

64. The following provisions of the Wallasey Tramways and Improvements Act 1899 shall apply to the exercise of the powers of this Act as if the same were re-enacted in this Act:—

Section 10 (Persons under disability may grant easements) ;

Section 11 (Power to purchase additional lands by agreement) ;

Section 12 (As to houses of labouring class) ;

Section 13 (Power to retain sell &c. lands) ;

Section 14 (Proceeds of sale of surplus lands) :

Provided that in the application of section 11 one acre shall be substituted for five acres and that in the application of section 12 the expression "house" shall mean any house or part of a house occupied as a separate dwelling.

65. The Council may erect maintain furnish and equip and may remove any such conservatories refreshment rooms and other temporary or permanent buildings erections and conveniences in any recreation ground as may be required or convenient for the purpose thereof and for the public resorting thereto and may let any refreshment rooms with their appurtenances belonging to them or under their control to such person for such term not exceeding three years at any one time at such rent payable at such times and under such covenants as the Council may think fit.

66. The Council may place or authorise any person to place seats or chairs or erect shelters in any street or in any place of public resort or recreation belonging to them or under the control or management of the Council for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats chairs and shelters and for preventing injury or damage thereto.

67.—(1) The Council may on any lands acquired by them for the purposes of this section and on any lands belonging to the Council and appropriated with the consent of and subject to such terms as may be prescribed by the Local Government Board to such purposes and on the bed of the sea or of the River Mersey erect maintain work and use a pumping station or stations with all necessary engines machinery works buildings and conveniences for

A.D. 1901. — pumping water from the sea or such river and may construct lay down and maintain in and along the foreshore and streets in the district such mains pipes and works as may be necessary or convenient for the conveyance use or supply of sea water and may use and supply such water accordingly.

(2) The Council may for the purposes of this section break up any streets in the district but they shall not under the powers of this section enter upon any lands not vested in them except with the consent of the owners and other persons interested in such lands.

(3) The terms and conditions upon and subject to which the Council may supply sea water under the powers of this section shall be such as the Council shall prescribe.

Power to
license
pleasure
boats.

68.—(1) The Council may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or navigation of such boats and vessels and may charge a fee not exceeding one shilling for every such licence.

(2) Any such licence may be granted for such period as the Council may think fit and may be suspended revoked or endorsed by the Council whenever they shall deem such suspension revocation or endorsement to be necessary or desirable in the interests of the public. Provided that the existence of the power to suspend revoke or endorse the licence shall be plainly set forth in the licence itself.

(3) A person shall not let for hire any pleasure boat or pleasure vessel not so licensed nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed.

(4) A person shall not act as boatman or assist in the charge or navigation of any pleasure boat or pleasure vessel when let for hire or when carrying passengers for hire unless he is licensed by the Council as aforesaid.

(5) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade or for any boatman or person assisting in the charge or navigation of such boat or vessel.

(6) A person shall not carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted on a conspicuous part of the said boat or vessel the number of persons which it is licensed to carry.

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(7) Every person who shall act in contravention of the provisions of this section shall for each offence be liable to a penalty not exceeding two pounds.

(8) Any person deeming himself aggrieved by the withholding suspension revocation or endorsement of any licence under the provisions of this section may appeal to a court of summary jurisdiction within fourteen days after such withholding suspension revocation or endorsement provided he give twenty-four hours' written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they see fit and to award costs.

(9) The provisions of this section shall not interfere with the exercise by the Council of the powers to make byelaws conferred upon them by section 172 of the Public Health Act 1875.

(10) The provisions of this section shall not apply to or in the case of boats or vessels licensed by the Board under any Act or Acts or to boats or vessels within the Great Float or any of the docks of the Board within the district.

69. The provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary authority) shall apply to byelaws made by the Council under this Act.

General provisions as to byelaws.

70. Section 265 (Protection of local authority and their officers from personal liability) section 305 (Entry on lands for purposes of Act) and section 306 (Penalty on obstructing execution of Act) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Application of sections 265 305 and 306 of the Public Health Act 1875.

71. All consents and licences of and permissions by the Council under this Act or under any other Act for the time being in force in the district shall be given in writing and unless otherwise prescribed by the Council shall be given under the hand of the clerk.

Consent of Council to be in writing.

72.—(1) Notices orders and other such documents under this Act shall be in writing.

Authentication and service of notices.

(2) Where any notice order summons or other document (except a conveyance contract or security) under this Act requires authentication by the Council the signature thereof by the clerk shall be a sufficient authentication and any notices orders summonses and other documents required or authorised to be served under this Act may be served in manner prescribed by section 267 of the Public Health Act 1875.

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Compensation how to be determined.

73. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

As to appeal.

74. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Council may in like manner appeal.

Recovery of penalties.

75. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Information by whom to be laid.

76. Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Council authorised in that behalf or by the clerk.

Judges not disqualified.

77. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Council or liable to the general district rate.

Works below high-water mark not to be commenced without consent of Mersey Commissioners.

78. The Council shall not under the powers of this Act construct on the shore of the estuary of the Mersey within the jurisdiction of the Mersey Commissioners any work without the previous consent of the Commissioners to be signified in writing under the hand of the Acting Conservator of the Mersey and then only according to such plan and under such restrictions and regulations as he may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this section the Mersey

Commissioners may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Council and the amount of such costs and charges shall be a debt due from the Council to the Mersey Commissioners and shall be recoverable accordingly as an ordinary debt or at the option of the Mersey Commissioners summarily as a civil debt. A.D. 1901.

79. If at any time the Mersey Commissioners or the Acting Conservator of the Mersey on their behalf deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Council on in over through or across tidal lands or tidal waters or of the intended site of any such work within the jurisdiction of the Mersey Commissioners the Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Council to the said Mersey Commissioners and be recoverable accordingly as an ordinary debt or at the option of the Mersey Commissioners summarily as a civil debt. Survey of works by Mersey Commissioners.

80. If a work constructed by the Council on in over through or across tidal lands or tidal waters in the estuary of the Mersey within the jurisdiction of the Mersey Commissioners is abandoned or suffered to fall into decay the Mersey Commissioners may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Council and the amount of such expense shall be a debt due from the Council to the said Mersey Commissioners and be recoverable accordingly as an ordinary debt or at the option of the Mersey Commissioners summarily as a civil debt. Abatement of work abandoned or decayed.

81. Nothing herein contained shall authorise the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty. Saving rights of Crown.

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Costs of Act. and incidental to the preparing applying for obtaining and passing
of this Act as taxed by the taxing officer of the House of Lords or
of the House of Commons shall be paid by the Council and may be
paid in the first instance out of any moneys in their hands but shall
be charged to and recouped by the moneys borrowed under the
provisions of this Act.

SCHEDULES.

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THE FIRST SCHEDULE.

RECITED ACTS.

LOCAL ACTS.

Session and Chapter.	Short Title.
8 Vict. c. vi. - - -	The Wallasey Improvement Act 1845.
21 & 22 Vict. c. lxiii. - -	The Wallasey Improvement Act 1858.
24 Vict. c. iv. - - -	The Wallasey Improvement Act 1861.
27 & 28 Vict. c. cxvii. - -	The Wallasey Improvement Act 1864.
30 & 31 Vict. c. cxxxii. - -	The Wallasey Improvement Act 1867.
35 & 36 Vict. c. cxxv. - -	The Wallasey Improvement Act 1872.
53 & 54 Vict. c. cxxi. - -	The Wallasey Local Board Act 1890.
59 & 60 Vict. c. ccix. - -	The Wallasey Urban District Council (Promenade) Act 1896.
62 & 63 Vict. c. xv. - -	Wallasey Tramways and Improvements Act 1899.

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ACTS CONFIRMING PROVISIONAL ORDERS.

Session and Chapter.	Short Title.
16 Vict. c. xxiv. - -	The Public Health Supplemental Act 1853 (No. 1).
26 & 27 Vict. c. lxiv. - -	The Local Government Supplemental Act 1863 (No. 2).
33 & 34 Vict. c. cxiv. - -	The Local Government Supplemental Act 1870.
39 & 40 Vict. c. ccii. - -	Local Government Board's Provisional Orders Confirmation (Birmingham &c.) Act 1876.
40 & 41 Vict. c. ccxxvii. -	Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877.
41 Vict. c. viii. - -	Local Government Board's Provisional Orders Confirmation (Bristol &c.) Act 1878.
44 & 45 Vict. c. clxii. - -	Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881.
46 & 47 Vict. c. cxxxvii. -	Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883.
51 & 52 Vict. c. lxii. - -	Local Government Board's Provisional Orders Confirmation (No. 4) Act 1888.
55 & 56 Vict. c. ccxxiii. -	Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892.
57 Vict. c. xx. - -	Local Government Board's Provisional Orders Confirmation (No. 2) Act 1894.
58 & 59 Vict. c. xl. - -	Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895.
59 Vict. c. xxix. - -	Local Government Board's Provisional Orders Confirmation (No. 4) Act 1896.
60 & 61 Vict. c. lxvi. - -	Electric Lighting Orders Confirmation (No. 6) Act 1897.
60 & 61 Vict. c. lxviii. -	Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897.
61 Vict. c. xxxii. - -	Local Government Board's Provisional Orders Confirmation (No. 2) Act 1898.
62 & 63 Vict. c. cxlv. - -	Local Government Board's Provisional Orders Confirmation (No. 4) Act 1899.
63 & 64 Vict. c. clxxvii. -	Local Government Board's Provisional Orders Confirmation (No. 8) Act 1900.

THE SECOND SCHEDULE.

PART I.

LOANS RAISED FOR THE PURPOSES OF THE GAS UNDERTAKING OF THE COUNCIL.

Authority for borrowing.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
The Wallasey Improvement Act 1858	45	£ 10,000 0 0	1864	£ 8,750 0 0	£ 2,900 0 0	£ 2,791 6 4	£ 3,058 13 8
The Wallasey Improvement Act 1861	45	10,000 0 0	1864	* 9,750 0 0	2,850 0 0	3,474 14 4	3,425 5 8
			1867	9,000 0 0	3,855 0 0	223 15 11	4,921 4 1
			1870	1,000 0 0	330 0 0	58 0 10	611 19 2
			1871	1,430 0 0	490 0 0	84 13 0	855 7 0
The Wallasey Improvement Act 1867	50	20,000 0 0	1872	4,300 0 0	1,250 0 0	247 6 7	2,802 13 5
			1873	2,730 0 0	725 0 0	172 5 11	1,832 14 1
			1874	1,490 0 0	295 0 0	169 4 5	1,025 15 7
			1877	50 0 0	5 0 0	8 0 2	36 19 10
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 Sanction 21 February 1878	50	7,000 0 0	1878	7,000 0 0	1,790 0 0	42 11 5	5,167 8 7
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 Sanction 11 April 1881	50	5,000 0 0	1881	5,000 0 0	1,050 0 0	39 6 4	3,910 13 8
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 Sanction 8 December 1881	50	2,800 0 0	1881	2,800 0 0	550 0 0	17 11 2	2,232 8 10

* These sums represent the sum sanctioned in each case less in the first loan £1,250 principal repaid before a sinking fund was established in connection with the loan and less in the second loan £250 so repaid.

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PART I.—continued.

Authority for borrowing.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 Sanction 4 September 1882	30	£ 10,200 0 0	{ 1883 1884	£ 7,770 0 0 2,430 0 0	£ 3,455 0 0 950 0 0	£ s. d. 23 1 11 38 7 1	£ s. d. 4,291 18 1 1,441 12 11
Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 Sanction 19 May 1884	30	10,000 0 0	{ 1884 1885 1886	7,891 0 0 300 0 0 1,365 0 0	2,274 0 0 50 0 0 230 0 0	936 7 11 52 4 5 237 9 2	4,680 12 1 187 15 7 897 10 10
Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 Sanction 19 May 1885	30	2,300 0 0	1891	444 0 0	30 0 0	72 5 9	341 14 3
Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 Sanction 15 March 1890	20	2,000 0 0	1890	2,000 0 0	—	830 1 2	1,169 18 10
Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 Sanction 26 April 1892	10	2,400 0 0	1892	2,400 0 0	815 0 0	1,036 14 6	548 5 6
Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 Sanction 26 April 1892	30	1,000 0 0	1892	1,000 0 0	—	175 7 4	824 12 8
Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892 Sanction 27 January 1893	50	14,500 0 0	1893	14,500 0 0	700 0 0	302 0 11	13,497 19 1
Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892 Sanction 27 January 1893	30	17,500 0 0	{ 1893 1894	7,500 0 0 10,000 0 0	998 0 0 1,000 0 0	317 5 8 507 5 5	6,184 14 4 8,492 14 7
Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892 Sanction 8 January 1894	20	18,000 0 0	1894	18,000 0 0	2,600 0 0	1,569 19 0	13,830 1 0
Local Government Board's Provisional Orders Confirmation (No. 2) Act 1898 Sanction 14 November 1898	25	40,000 0 0	1898	5,000 0 0	—	279 1 7	4,720 18 5
			£	136,800 0 0	20,852 0 0	14,078 0 10	92,869 19 2

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PART II.

LOANS RAISED FOR THE PURPOSES OF THE WATER UNDERTAKING OF THE COUNCIL.

Authority for borrowing.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
The Wallasey Improvement Act 1858	38	£ 10,633 0 0	1872	£ 10,633 0 0	£ 3,060 0 0	£ 3,213 3 0	£ 4,359 17 0
The Wallasey Improvement Act 1861	39	16,430 0 0	1872	16,430 0 0	7,403 0 0	1,839 13 9	7,187 6 3
Local Government Supplemental Act 1863 (No. 2)	50	12,860 0 0	1864	*4,700 0 0	2,405 0 0	49 6 8	2,245 13 4
			1865	*3,670 0 0	1,800 0 0	47 19 1	1,822 0 11
			1866	*973 0 0	405 0 0	38 5 8	529 14 4
			1867	*1,180 0 0	440 0 0	73 1 10	666 18 2
			1870	*200 0 0	35 0 0	42 17 9	122 2 3
Wallasey Improvement Act 1872	50	15,000 0 0	1871	*1,837 0 0	645 0 0	32 14 3	1,159 5 9
			1871	2,473 0 0	745 0 0	117 13 3	1,610 6 9
			1872	182 0 0	25 0 0	35 1 5	121 18 7
			1873	6,340 0 0	1,545 0 0	433 4 2	4,361 15 10
			1874	6,000 0 0	943 0 0	829 1 7	4,227 18 5
Public Health Act 1875 Sanction 26 October 1889	50	1,000 0 0	1876	5 0 0	—	1 5 8	3 14 4
			1890	1,000 0 0	—	197 7 7	802 12 5
			1899	1,746 0 0	—	97 9 5	1,648 10 7
Public Health Act 1875 Sanction 30 June 1898	25	1,746 0 0	1899	1,746 0 0	—	97 9 5	1,648 10 7
			£	57,369 0 0	19,451 0 0	7,048 5 1	30,869 14 11

* These sums represent the total amount sanctioned less £300 principal repaid before a sinking fund was established in connection with the loan.

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PART III.

LOANS RAISED FOR THE PURPOSES OF THE FERRY UNDERTAKING OF THE COUNCIL.

Authority for borrowing.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
		£ s. d.		£ s. d.	£ s. d.	£ s. d.	£ s. d.
The Wallasey Improvement Act 1858 -	48	75,000 0 0	1864	75,000 0 0	40,334 0 0	2,118 7 3	32,547 12 9
The Wallasey Improvement Act 1861 -	48	50,000 0 0	1864	50,000 0 0	19,939 0 0	8,401 4 5	21,659 15 7
The Wallasey Improvement Act 1864 -	50	45,000 0 0	1864	26,000 0 0	13,323 0 0	310 1 10	12,566 18 2
			1865	13,000 0 0	8,384 0 0	733 4 9	9,882 15 3
			1872	700 0 0	150 0 0	92 8 9	457 11 3
			1874	13,014 0 0	3,060 0 0	960 18 11	8,993 1 1
Wallasey Improvement Act 1872 -	50	74,000 0 0	1875	42,374 8 1	10,920 0 0	1,482 19 8	29,971 8 5
			1876	4,169 14 9	735 0 0	469 2 4	2,965 12 5
			1877	13,741 17 2	3,405 0 0	171 12 2	10,165 5 0
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877	30	40,000 0 0	1879	15,945 0 0	10,130 0 0	72 10 10	5,742 9 2
Sanction 15 November 1878 -			1880	10,600 0 0	6,205 0 0	120 10 4	4,274 9 8
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877	60	50,000 0 0	1881	13,455 0 0	6,852 0 0	609 13 8	5,993 6 4
Sanction 23 November 1878 -			1878	50,000 0 0	7,675 0 0	551 15 9	41,773 4 3

PART III —continued.

Authority for borrowing.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 Sanction 5 February 1879	60	£ 10,381 0 0	1879	£ 10,381 0 0	£ 1,530 0 0	£ 160 9 8	£ 8,690 10 4
Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 Sanction 31 March 1881	60	£ 2,119 0 0	1881	£ 2,119 0 0	£ 200 0 0	£ 120 14 1	£ 1,798 5 11
Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881 Sanction 8 December 1881	60	(Less £330 cancelled) £ 10,000 0 0	1881	£ 9,670 0 0	£ 3,858 0 0	£ 128 16 3	£ 5,683 3 9
Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881 Sanction 17 December 1883	30	£ 8,500 0 0	{ 1883 1884	£ 2,900 0 0	£ 990 0 0	£ 287 18 1	£ 1,622 1 11
Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895 Sanction 27 March 1896	15	£ 24,000 0 0		£ 5,600 0 0	£ 2,070 0 0	£ 207 8 2	£ 3,322 11 10
Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895 Sanction 7 February 1900	7	£ 951 0 0	1900	£ 930 0 0	—	£ 121 7 5	£ 808 12 7
Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897 Sanction 2 March 1898	20	£ 10,600 0 0	1898	£ 5,000 0 0	£ 555 0	£ 23 0 3	£ 4,421 19 9
£				£ 394,600 0 0	£ 140,315 0 0	£ 22,877 4 0	£ 231,407 16 0

A.D. 1901.

A.D. 1901.

PART IV.
LOANS RAISED FOR VARIOUS PURPOSES.

Authority for borrowing.	Purpose.	Period sanctioned (years).	Amount sanctioned. £ s. d.	Date of borrowing.	Amount borrowed. £ s. d.	Amount repaid. £ s. d.	Amount in Sinking Fund. £ s. d.	Amount to be provided for. £ s. d.
Public Health Act 1848 Sanction } 21 April 1855 - - - }	Seacombe Sewerage -	34	1,828 8 8	1873	1,828 8 8	1,030 0 0	302 12 2	495 16 6
Public Health Act 1848 Sanction } 21 April 1855 - - - }	New Brighton Sewerage -	34	1,131 14 10	1873	1,131 14 10	—	776 13 10	355 1 0
Local Government Act 1858 } Sanction 3 December 1858 - }	Seacombe Sewerage -	37	2,401 11 4	1873	2,401 11 4	1,200 0 0	319 13 9	881 17 7
Local Government Act 1858 } Sanction 3 December 1858 - }	New Brighton Sewerage -	38	1,468 5 2	1873	1,468 5 2	902 13 6	32 11 6	533 0 2
Local Government Act 1858 } Sanction 18 October 1869 - }	New Brighton Sewerage -	50	400 0 0	1869	400 0 0	100 0 0	104 8 11	195 11 1
Local Government Supplemental } Act 1863 (No. 2) - - - }	New Brighton Sewerage -	50	140 0 0	1869	140 0 0	—	72 9 0	67 11 0
Local Government Act 1858 and } Local Government Supplemental } Act 1870 Sanction 15 August } 1872 - - - }	Public offices -	50	3,500 0 0	{ 1875 1885 }	3,000 0 0 500 0 0	1,025 0 0 75 0 0	18 4 5 2 4	1,974 1 8 419 17 8
Local Government Act 1858 and } Local Government Supplemental } Act 1870 Sanction 23 June } 1873 - - - }	Seacombe Sewerage -	50	2,150 0 0	1874	2,150 0 0	560 0 0	160 4 9	1,429 15 3
Local Government Act 1858 and } Local Government Supplemental } Act 1870 Sanction 27 April } 1874 - - - }	New Brighton Sewerage -	35	1,500 0 0	1876	1,500 0 0	747 6 6	119 9 7	633 3 11
Public Health Act 1875 Sanction } 21 July 1876 - - - }	Public conveniences -	30	600 0 0	1876	600 0 0	350 0 0	76 8 7	173 11 5

PART IV.—continued.

Authority for borrowing.	Purpose.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
Public Health Act 1875 Sanction } 29 August 1876. - }	Street improvements	30	£ 2,630 0 0	1876	£ 2,630 0 0	£ 1,280 0 0	£ 817 2 11	£ 532 17 1
Public Health Act 1875 Sanction } 17 September 1877 - }	Sea Bank Road	30	500 0 0	1877	500 0 0	—	334 17 1	165 2 11
Public Health Act 1875 Sanction } 21 February 1878 - }	Hospital &c.	50	450 0 0	1878	450 0 0	—	299 0 7	150 19 5
Public Health Act 1875 Sanction } 10 April 1878 - }	Seacombe approaches	50	10,000 0 0	1878	10,000 0 0	3,050 0 0	194 6 3	6,755 13 9
Public Health Act 1875 Sanction } 5 February 1879 - }	Public conveniences	30	400 0 0	1879	400 0 0	200 0 0	50 16 0	149 4 0
Public Health Act 1875 Sanction } 13 August 1884 - }	Hospital	60	1,700 0 0	1885	1,250 0 0	—	133 7 4	1,116 12 8
Public Health Act 1875 Sanction } 29 September 1885 - }	Wallasey village	30	500 0 0	1885	500 0 0	150 0 0	37 3 1	312 16 11
Public Health Act 1875 Sanction } 14 February 1887 - }	New Brighton Sewerage	30	245 0 0	1887	200 0 0	50 0 0	26 8 8	123 11 4
Public Health Act 1875 Sanction } 24 September 1888 - }	Sandon Promenade	20	380 0 0	1889	380 0 0	100 0 0	96 4 10	183 15 2
Public Health Act 1875 Sanction } 17 July 1890 - }	Central Park	50	17,500 0 0	1890	7,500 0 0	665 0 0	7 14 9	6,827 5 3
Public Health Act 1875 Sanction } 17 July 1890 - }	Central Park	20	1,160 0 0	1891	1,160 0 0	470 0 0	11 14 9	678 5 3
Public Health Act 1875 Sanction } 24 October 1890 - }	Rowson Street	30	900 0 0	1891	900 0 0	—	204 15 0	695 5 0
Public Health Act 1875 Sanction } 28 October 1890 - }	Marine Promenade	25	6,700 0 0	1891	3,050 0 0	900 0 0	19 13 4	2,130 6 8
					3,650 0 0	950 0 0	22 4 5	2,677 15 7

A.D. 1901.

[Ch. cc]xi.]

Wallasey Improvement Act, 1901.

[1 Edw. 7.]

PART IV.—continued.

Authority for borrowing.	Purpose.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
Public Health Act 1875 25 May 1891	Central Park	20	£ 1,038 0 0	1891	£ 1,038 0 0	£ 190 0 0	£ s. d. 191 9 11	£ s. d. 656 10 1
Public Health Act 1875 8 December 1892	Marine Promenade	50	2,460 0 0	{ 1893 1894	1,000 0 0 1,460 0 0	40 0 0 40 0 0	29 2 6 46 15 3	930 17 6 1,373 4 9
Public Health Act 1875 8 December 1892	Marine Promenade	20	290 0 0	1894	290 0 0	40 0 0	39 16 4	210 3 8
Public Health Act 1875 8 December 1892	Street improvement	25	545 0 0	1895	545 0 0	—	21 13 2	453 6 10
Public Health Act 1875 27 January 1893	Street improvement	50	600 0 0	1893	600 0 0	—	41 10 7	558 9 5
Public Health Act 1875 13 February 1893	Central Park	50	1,163 0 0	1893	1,050 0 0	50 0 0	30 10 5	969 9 7
Public Health Act 1875 17 January 1894	Public offices	20	450 0 0	1894	450 0 0	50 0 0	54 4 6	345 15 6
Public Health Act 1875 17 June 1895	Seacombe Sewerage	30	583 0 0	1895	500 0 0	50 0 0	15 7 7	434 12 5
Public Health Act 1875 17 June 1895	Egremont Sewerage	30	270 0 0	1895	200 0 0	—	30 9 4	169 10 8
Public Health Act 1875 17 June 1895	New Brighton Sewerage	30	2,750 0 0	1895	2,750 0 0	300 0 0	10 0 9	2,439 19 3
Public Health Act 1875 17 June 1895	Wallasey Sewerage	30	2,140 0 0	1895	2,100 0 0	200 0 0	36 14 2	1,863 5 10
Public Health Act 1875 17 June 1895	Hospital	30	250 0 0	1896	250 0 0	—	28 3 11	221 16 1

PART IV.—*continued.*

Authority for borrowing.	Purpose.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
Public Health Act 1875 Sanction } 19 February 1896 - - -	Street improvement	46	£ 310 0 0	1896	£ 300 0 0	£ —	£ 16 13 7	£ 283 6 5
Public Health Act 1875 Sanction } 6 June 1896 - - -	Road scarifier	10	150 0 0	1897	150 0 0	—	55 3 3	94 16 9
Public Health Act 1875 Sanction } 18 June 1896 - - -	Marine Park	50	4,135 0 0	1896	1,600 0 0	—	59 15 7	1,540 4 5
Public Health Act 1875 Sanction } 15 February 1897 - - -	Steam roller	10	400 0 0	1898	355 0 0	—	63 0 4	291 19 8
Public Health Act 1875 Sanction } 3 March 1898 - - -	Seacombe Promenade	30	932 0 0	1898	930 0 0	—	60 15 0	869 5 0
Public Health Act 1875 Sanction } 14 July 1898 - - -	Street improvement	50	496 0 0	1899	496 0 0	—	8 19 0	487 1 0
Public Health Act 1875 Sanction } 14 July 1898 - - -	Street improvement	13	649 0 0	1899	649 0 0	—	84 11 8	564 8 4
Public Health Act 1875 Sanction } 4 November 1898 - - -	Liscard Fire Station	50	788 0 0	1899	760 0 0	—	13 14 4	746 5 8
Public Health Act 1875 Sanction } 4 November 1898 - - -	Steam fire engine	10	410 0 0	1899	400 0 0	—	71 0 4	328 19 8
Public Health Act 1875 Sanction } 10 November 1898 - - -	Street improvement	50	863 0 0	1899	850 0 0	—	15 11 9	834 8 3
Public Health Act 1875 Sanction } 10 November 1898 - - -	Street improvement	10	927 0 0	1899	915 0 0	—	164 11 2	750 8 10
Public Health Act 1875 Sanction } 3 January 1899 - - -	Street improvement	33	940 0 0	1899	940 0 0	—	34 14 7	905 5 5

A.D. 1901.

A.D. 1901.

PART IV.—continued.

Authority for borrowing.	Purpose.	Period sanctioned (years).	Amount sanctioned.	Date of borrowing.	Amount borrowed.	Amount repaid.	Amount in Sinking Fund.	Amount to be provided for.
Public Health Act 1875 Sanction } 3 January 1899 - }	Street improvement	5	£ 591 0 0	1899	£ 590 0 0	£ —	£ s. d. 111 2 7	£ s. d. 478 17 5
Public Health Act 1875 Sanction } 4 January 1899 - }	Street improvement	25	895 0 0	1899	885 0 0	—	24 5 6	860 14 6
Public Health Act 1875 Sanction } 4 January 1899 - }	Vale Park -	50	138 0 0	1899	138 0 0	—	2 9 9	135 10 3
Public Health Act 1875 Sanction } 5 January 1899 - }	Steam roller -	10	470 0 0	1899	470 0 0	—	41 0 0	429 0 0
Public Health Act 1875 Sanction } 16 February 1899 - }	Street improvement	25	1,224 0 0	1899	1,200 0 0	—	32 18 3	1,167 1 9
Public Health Act 1875 Sanction } 17 March 1899 - }	South Seacombe Play-ground.	50	1,346 0 0	1899	1,346 0 0	—	11 18 8	1,334 1 4
Public Health Act 1875 Sanction } 17 March 1899 - }	South Seacombe Play-ground.	20	954 0 0	1899	954 0 0	—	35 10 1	918 9 11
Public Health Act 1875 Sanction } 7 February 1900 - }	Public offices -	7	201 0 0	1900	200 0 0	—	26 2 1	173 17 11
Public Health Act 1875 Sanction } 7 February 1900 - }	Hospital -	7	80 0 0	1900	80 0 0	—	10 8 10	69 11 2
			£	£	£	£	5,816 6 6	53,549 13 6

THE THIRD SCHEDULE.

A.D. 1901.

(FORM OF MORTGAGE.)

By virtue of the Wallasey Improvement Act 1901 and of other their powers in that behalf them enabling the urban district council of Wallasey (hereinafter referred to as "the Council") in consideration of the sum of

pounds paid

to the treasurer of the district by

(hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of

pounds shall be fully paid and

satisfied with interest for the same (subject as hereinafter provided) at the rate of

per centum per annum from the

day of

one thousand nine hundred and

until payment of the said principal sum such interest to be paid half-yearly [to the bearer of the coupons or interest warrants hereunto annexed or to be hereafter annexed hereto on the days and at the place therein mentioned] [on

the

day of

and

the

day of

in each year] And it is hereby agreed that the said principal sum of

pounds shall be repaid

at the District Council Offices Egremont Cheshire [(subject as hereinafter provided) on the

day of

one thousand nine

hundred and

] [by

]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the said Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein In witness whereof the Council have caused their common seal to be hereunto affixed this

day of

one thousand

nine hundred and

A.D. 1901.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the
 within-mentioned time for repayment of the within-mentioned principal sum
 of _____ is hereby extended to the
 day of _____ one thousand nine hundred and
 [and the interest to be paid thereon on and from the
 day of _____ one thousand nine hundred and
 is hereby declared to be at the rate of _____ per centum
 per annum] Dated this _____ day of
 one thousand nine hundred and _____

(FORM OF TRANSFER OF MORTGAGE.)

I [the within-named] _____
 [of _____] in consideration of the
 sum of _____ pounds paid
 to me by _____ of
 (hereinafter called "the transferee") do hereby transfer to the transferee
 [his] executors administrators and assigns (the within written security) [the
 mortgage number _____ of the revenues of the Wallasey Urban
 District Council bearing date the _____ day of _____]
 and all my right and interest under the same subject to the several conditions
 on which I hold the same at the time of the execution hereof and I the
 transferee for myself my executors administrators and assigns do hereby
 agree to take the said mortgage security subject to the same conditions
 Dated this _____ day of _____ one thousand
 nine hundred and _____

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FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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